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IN THE FEDERAL HIGH COURT OF NIGERIA
HOLDEN AT ABUJA

SUIT NO.
FHC/ABJ/CS/355/2025

IN THE MATTER OF AN APPLICATION BY META PLATFORMS, INC.
FOR JUDICIAL REVIEW IN THE FORM OF CERTIORARI AND THE EQUITABLE REMEDIES
OF DECLARATION AND INJUNCTION

BETWEEN

META PLATFORMS, INC.

APPLICANT

AND

NIGERIA DATA PROTECTION COMMISSION

RESPONDENT

TERMS OF SETTLEMENT

BACKGROUND

1. On 20 September 2023, the Respondent issued a Notice of Investigation to the Applicant.
2. Thereafter, during the course of the Respondent's investigation ("Investigation"), the Applicant and the Respondent exchanged written communications and met in person multiple times.
3. After the Respondent completed its investigation, the Respondent issued its final orders dated 18 February 2025 ("**Final Orders**") against the Applicant. The Final Orders set out eight "*Issues for Determination*" as well as the Respondent's reasoning and findings on each of these eight issues. The Final Orders also include the following specific orders against the Applicant:
 - 3.1. *"Meta shall immediately seek express, specific and unambiguous consent of data subjects in Nigeria in all circumstances where their personal [sic] will be processed for behavioral advertising;*
 - 3.2. *Meta shall carry out a Data Processing Impact Assessment that accounts for the consequences of how its algorithm or other methodologies enables and amplifies the processing of personal data – taking into*

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- account the impact of this processing on human rights and peaceable, democratic development of Nigeria;
- 3.3. Meta shall immediately update its Privacy Policy and shall provide information relating to expert opinions on the consequences of profiling or and how processing of personal data may expose users to specific risks – particularly health risks;
 - 3.4. Meta shall cease and desist from transferring data out of Nigeria without the approval of the Commission in line with the NDP Act;
 - 3.5. Meta shall cease and desist from collecting the personal data of non-users from its users. Consent of its users is not a lawful basis for collecting and uploading the personal data of non-users to its servers outside Nigeria;
 - 3.6. Given the scale and impact of its processing involving over 60 million data subjects in Nigeria, Meta shall provide an appropriate icon as a link to educative videos on the dangers of manipulative, unlawful or unfair data processing which may expose data subjects to health and financial risks or other destructive or fatal risks. The educative videos shall be created through active participation of educational institutions and non-profit organisations approved by the Commission;
 - 3.7. Given the objective of the NDP Act in relation to the development of Nigeria's digital economy, Meta shall ensure that data subjects and businesses in Nigeria are given similar opportunities to benefit from Meta Platforms in a manner that is similar to their counterparts in the EU and the US;
 - 3.8. Meta shall put in place adequate technical and organisational measures – including collaboration with educational and civil society organisations – for the protection of data privacy on its platforms. Such measures shall involve prompt deletion of unlawful personal data posted on its platforms; and
 - 3.9. Meta shall pay the naira equivalent of 32,800,000 USD (Thirty—Two-Million-Eight-Hundred-Thousand United States Dollars) as a remedial fee. The naira equivalent shall be at the rate determined by the Central Bank of Nigeria."
4. Following the issuance of the Final Orders, the Applicant exercised its statutory right to challenge the Final Orders before this Honourable Court by way of its Originating Summons dated 19 March 2025 (the "Originating Summons"), seeking *inter alia* to declare the Final Orders invalid, quash the Final Orders,

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and restrain the Respondent from enforcing or taking steps to enforce the Final Orders against the Applicant. 1590

5. The Investigation, Final Orders, and the Originating Summons, together, are referred to hereinafter as the "**Matters**".

SETTLEMENT

6. The Applicant and the Respondent (the "**Parties**") have come to a mutual settlement agreement that resolves the dispute underlying the Applicant's Originating Summons. Pursuant to this agreement: (i) the Applicant has agreed to provide specific remedial consideration to the Respondent in support of protecting the rights of data subjects in Nigeria; and (ii) the Respondent has *inter alia* agreed to set aside and waive any rights to enforce or take steps to enforce the Final Orders against the Applicant.
7. The Applicant has also agreed to pay the Respondent's legal counsel's fees directly to the Respondent's legal counsel at the Respondent's request.
8. Further, the Parties agreed that the Applicant shall use its best endeavors to continuously improve its technical and organizational measures, taking into account the applicable obligations and/or principles set out in the Nigeria Data Protection Act, 2023 ("**NDP Act**"), particularly the following:
- 8.1. The obligation under the NDP Act to process personal data lawfully, fairly and transparently;
- 8.2. The obligation under the NDP Act to rely on an appropriate lawful basis when processing personal data, including for the purpose of behavioral advertising;
- 8.3. Requirements under the NDP Act for conducting a Data Privacy Impact Assessment in Nigeria; and
- 8.4. Safeguards for cross-border transfers of personal data.
9. In light of the foregoing:
- 9.1. The Applicant wholly and completely terminates, abandons, withdraws, and discontinues the Originating Summons as well as any and all claims against the Respondent connected to or arising from the Matters or the subject matter thereof, except as the parties have otherwise agreed.
- 9.2. The Respondent: (i) sets aside the Final Orders against Meta; and (ii) save and except as the Parties have otherwise agreed, fully and firmly releases and discharges Meta from any and all claims, demands,



actions, causes of action, contracts, obligations, suits, debts, costs, liabilities, which the Respondent ever had, may now have, or may hereafter claim to have against Meta in respect of the Matters as defined in paragraph 5 above. 1591

10. For the avoidance of doubt, paragraph 9.2 above will not restrict the Respondent from engaging in its statutory duties under the Nigeria Data Protection Act, 2023 with respect to the Applicant so long as it does not enforce or take steps to enforce the Final Orders or initiate new proceedings or issue new orders concerning the Matters as defined in paragraph 5 above.
11. The Parties agree that the execution and performance of these Terms of Settlement does not constitute: (i) an admission of liability or wrongdoing on the part of either party; or (ii) either party conceding their legal positions expressed in connection with the Matters.
12. The Parties agree that these Terms are binding on them and the same shall be entered as final judgment of this Honourable Court in this suit.
13. These Terms shall also take effect as a contract between the Parties notwithstanding that they shall also be a judgment of the Honourable Court.

Dated this 30 day of October, 2025.

SIGNED on behalf of the Applicant herein,
META PLATFORMS, INC.

Anna Benckert

Anna Benckert (Oct 30, 2025 20:10:43 GMT)

Name: Anna Benckert

Designation: VP and Associate General Counsel, International Legal, Meta Platforms, Inc.

SIGNED on behalf of the Respondent herein,
NIGERIA DATA PROTECTION COMMISSION

Barbadele Bamigboye, Esq.
Name: *Barbadele Bamigboye, Esq.*
Designation: *Head, Legal & Compliance Regulations*

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ABUJA



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Applicant's Counsel

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Fred Onuobia, SAN

Peace Adeleye

Larry Nkwor

Justice Uka-Ofor

Ayomide Abiodun

Kanyinsola Olukokun

Moyinoluwa Adegboye

Oluwatosin Jinadu

Victoria Akingbemila

Ifenna Okeke

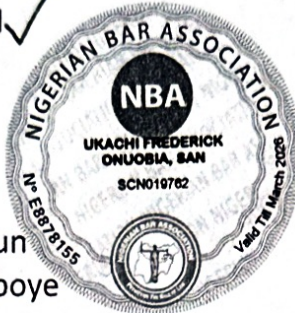
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**Respondent's Counsel**

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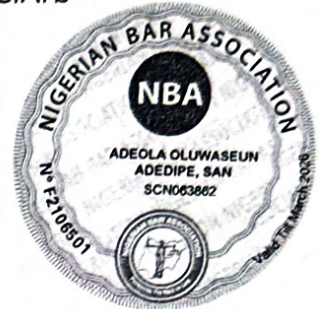
16 Aso Gardens Estate

Off River Trent Street

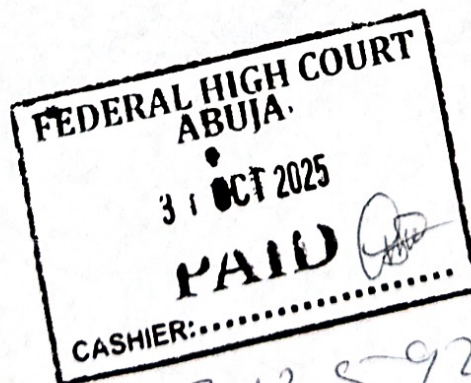
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Abuja

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IN THE FEDERAL HIGH COURT OF NIGERIA
IN THE ABUJA JUDICIAL DIVISION
HOLDEN AT ABUJA
ON MONDAY THE 3RD DAY OF NOVEMBER, 2025
BEFORE HIS LORDSHIP, HON. JUSTICE J.K OMOTOSHO
JUDGE

SUIT NO: FHC/ABJ/CS/355/2025

BETWEEN:

META PLATFORMS, INC

- APPLICANT

AND

NIGERIA DATA PROTECTION COMMISSION

- RESPONDENT

CONSENT JUDGMENT

Upon this matter coming before this Court today the 3rd day of November, 2025 and parties having adopted the Terms of Settlement set out hereunder and urged the Court to adopt the said Terms of Settlement executed by the parties as the Judgment of the Court.

TERMS OF SETTLEMENTS AS AGREED BY THE PARTIES

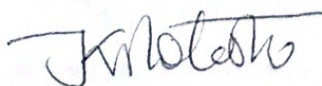
- 1. THAT** on 20th September, 2023, the Respondent issued a Notice of Investigation to the Applicant.
- 2. THAT** during the course of the Respondent's investigation ("**Investigation**"), the Applicant and the Respondent exchanged written communications and met in person multiple times.


HON. JUSTICE J.K. OMOTOSHO
JUDGE


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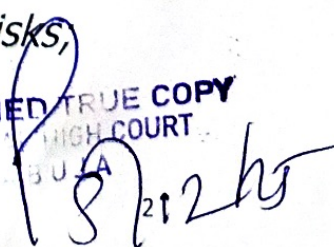
3. THAT after the Respondent completed its investigation, the Respondent issued its final orders dated 18 February, 2025 ("Final Orders") against the Applicant. The Final Orders set out eight "Issues for Determination" as well as the Respondent's reasoning and findings on each of these eight issues. The Final Orders also include the following specific orders against the Applicant:

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- 3.2. Meta shall carry out a Data Processing Impact Assessment that accounts for the consequences of how its algorithm or other methodologies enables and amplifies the processing of personal data-taking into account the impact of this processing on human rights and peaceable, democratic development of Nigeria.
- 3.3. Meta shall immediately update its Privacy Policy and shall provide information relating to expert opinions on the consequences of profiling or and how processing of personal data may expose users to specific risks – particularly health risks,



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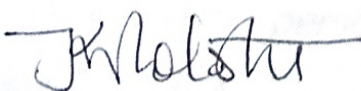
- 3.4. Meta shall cease and desist from transferring data out of Nigeria without the approval of the Commission in line with the NDP Act;
- 3.5. Meta shall cease and desist from collecting the personal data of non-users from its users. Consent of its users is not a lawful basis for collecting and uploading the personal data of non-users to its servers outside Nigeria;
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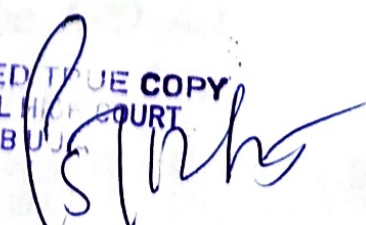
manner that is similar to their counterparts in the EU and US;

3.8. Meta shall put in place adequate technical and organizational measures – including collaboration with educational and civil society organisations – for the protection of data privacy on its platforms. Such measures shall involve prompt deletion of unlawful personal data posted on its platforms; and

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4. THAT *following the issuance of the Final Orders, the Applicant exercised its statutory right to challenge the Final Orders before this Honourable Court by way of its Originating Summons dated 19 March 2025 (the "Originating Summons"), seeking inter alia to declare the Final Orders invalid, quash the Final Orders, and restrain the Respondent from enforcing or taking steps to enforce the Final Orders against the Applicant.*


HON. JUSTICE J.K. OMOTOSHO
JUDGE


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- 5. THAT** the Investigation, Final Orders, and the Originating Summons, together, are referred to hereinafter as the "Matters".
- 6. THAT** the Applicant and the Respondent (the "Parties") have come to a mutual settlement agreement that resolves the dispute underlying the Applicant's Originating Summons. Pursuant to this agreement: (i) the Applicant has agreed to provide specific remedial consideration to the Respondent in support of protecting the rights of data subjects in Nigeria; and (ii) the Respondent has inter alia agreed to set aside and waive any rights to enforce or take steps to enforce the Final Orders against the Applicant.
- 7. THAT** the Applicant has also agreed to pay the Respondent's legal counsel's fees directly to the Respondent's legal counsel at the Respondent's request.
- 8. THAT** the Parties agreed that the Applicant shall use its best endeavors to continuously improve its technical and organizational measures, taking into account the applicable obligations and/or principles set out in the Nigeria Data Protection Act, 2023 ("NPD Act"), particularly the following:

8.1. The obligation under the NPD Act to process personal data lawfully, fairly and transparently;

8.2. *The obligation under the NDP Act to rely on an appropriate lawful basis when processing personal data, including for the purpose of behavioral advertising.*

8.3. *Requirements under the NDP Act for conducting a Data Privacy Impact Assessment in Nigeria; and*

8.4. *Safeguards for cross-border transfers of personal data.*

9. THAT *In light of the foregoing:*

9.1. *The Applicant wholly and completely terminates, abandons, withdraws, and discontinues the Originating Summons as well as any and all claims against the Respondent connected to or arising from the Matters or the subject matter thereof, except as the parties have otherwise agreed.*

9.2. *The Respondent: (i) sets aside the Final Orders against Meta; and (ii) save and except as the Parties have otherwise agreed, fully and firmly releases and discharges Meta from any and all claims, demands, actions, causes of action, contracts, obligations, suits, debts, costs, liabilities, which the Respondent ever had, may now have, or may hereafter claim to have against*

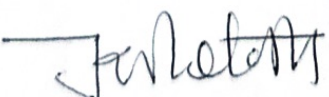
Meta in respect of the Matters as defined in paragraph 5 above.

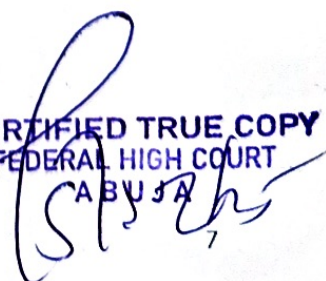
10. THAT *for the avoidance of doubt, paragraph 9.2 above will not restrict the Respondent from engaging in its statutory duties under the Nigeria Data Protection Act, 2023 with respect to the Applicant so long as it does not enforce or take steps to enforce the Final Orders or initiate new proceedings or issue new orders concerning the Matters as defined in paragraph 5 above.*

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12. THAT *the parties agree that these Terms are binding on them and the same shall be entered as final judgment of this Honourable Court in this suit.*

13. THAT *these Terms shall also take effect as a contract between the Parties notwithstanding that they shall also be a judgment of the Honourable Court.*


HON. JUSTICE J.K OMOTOSHO
JUDGE
03/11/2025


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PARTIES: Absent.

APPEARANCES: **Fred Onuobia SAN** with **C. Chika Esq.**, and **C. Maduka.** for the Claimant.

J.K. Omotosho

HON. JUSTICE J.K. OMOTOSHO
JUDGE

Adeola Adedipe SAN with **Jedidiah Akpata Esq.**,
MCdonald Kurere Esq., **Victor Oni Esq.** and **Dide Oluwa Nylander** for the Defendants.



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[Signature]